

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Guillon	Team: Squad #17	CCRB Case #: 202311974	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 12/19/2023 9:27 PM	Location of Incident: 1699 Albany Avenue	18 Mo. SOL 6/19/2025	Precinct: 63		
Date/Time CV Reported Thu, 12/21/2023 1:50 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 12/21/2023 1:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO David Belkin	07708	960225	063 PCT
2. SGT Joseph Piscatella	05325	941107	063 PCT
3. PO Maximo Sabala	22413	971284	063 PCT
4. PO Stanislav Yakovlev	06378	945119	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Randi Knepper	12582	967569	063 PCT
2. PO Andrew Pfeiffer	25112	970084	063 PCT
3. SGT Francesca Gagliardi	00937	956662	063 PCT
4. LT John Romani	00000	949568	063 PCT
5. PO John Triano	31798	953494	063 PCT
6. PO Paul Alva	11022	963372	063 PCT
7. PO Richard Lebron	11741	969892	063 PCT
8. PO Fathy Kaid	17152	972030	063 PCT
9. PO Fayyoz Nasimov	31370	973623	063 PCT
10. PO Hosam Essa	25522	971048	063 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Joseph Piscatella	Force: Sergeant Joseph Piscatella used a non-lethal restraining device on § 87(2)(b)	A . Substantiated
B . SGT Joseph Piscatella	Force: Sergeant Joseph Piscatella used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO David Belkin	Force: Police Officer David Belkin used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Maximo Sabala	Force: Police Officer Maximo Sabala used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Stanislav Yakovlev	Off. Language: Police Officer Stanislav Yakovlev made remarks to § 87(2)(b) based upon race.	E . Substantiated
F . PO Stanislav Yakovlev	Discourtesy: Police Officer Stanislav Yakovlev spoke discourteously to § 87(2)(b)	F . Substantiated
G . PO Stanislav Yakovlev	Abuse: Police Officer Stanislav Yakovlev refused to provide his name to § 87(2)(b)	G . Substantiated
H . PO Stanislav Yakovlev	Abuse: Police Officer Stanislav Yakovlev refused to provide his shield number to § 87(2)(b)	H . Substantiated

Case Summary

On December 21, 2023, § 87(2)(b) filed this complaint with the CCRB via the agency's website.

On December 19, 2023, at approximately 9:27 PM, Police Officer David Belkin and Sergeant Joseph Piscatella from the 63rd Precinct stopped § 87(2)(b) vehicle in front of 1699 Albany Avenue in Brooklyn for various vehicle and traffic law (VTL) violations. During the stop, § 87(2)(b) was arrested and as the officers attempted to rear handcuff him, he fled from the officers on foot. SGT Piscatella tased § 87(2)(b) causing him to fall to the ground (**Allegation A: Force, substantiated**). While he was being handcuffed, PO Belkin, SGT Piscatella and Police Officer Maximo Sabala of the 63rd Precinct allegedly held § 87(2)(b) by the back of his neck, stood on his legs and twisted his left arm, which caused various injuries to § 87(2)(b) (**Allegations B – D: Force, within NYPD guidelines**). Once handcuffed, § 87(2)(b) stood up and Police Officer Stanislav Yakovlev, of the 63rd Precinct, used the word “nigga” while speaking with § 87(2)(b) (**Allegation E: Offensive Language, substantiated and Allegation F: Discourtesy, substantiated**). § 87(2)(b) then asked PO Yakovlev for his name and shield number, and PO Yakovlev did not provide them (**Allegations G and H: Abuse of Authority, substantiated**). § 87(2)(b) was escorted by officers to § 87(2)(b) in Brooklyn following his arrest.

As per arrest report § 87(2)(b) § 87(2)(b) was charged with resisting arrest, obstruction of governmental administration in the second degree, aggravated unlicensed operation of a motor vehicle in the second degree, violation of local law, covered license plate, failed to stop at stop sign and speeding (**BR 01**).

The investigation received 15 body-worn camera (BWC) videos capturing the incident (**BR 02**).

Findings and Recommendations

Allegation (A) Force: Sergeant Joseph Piscatella used a non-lethal restraining device on § 87(2)(b)

Allegation (B) Force: Sergeant Joseph Piscatella used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer David Belkin used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Maximo Sabala used physical force against § 87(2)(b)

SGT Piscatella's BWC footage of the incident (**BR 03**), the first minute of which has no audio, shows that between 00:15 and 01:00, SGT Piscatella and PO Belkin are within their police vehicle driving behind § 87(2)(b) vehicle, a white van with ladders attached on top, and they activate their turret lights. They stop his vehicle at the intersection of Albany Avenue and Avenue I in Brooklyn. At runtime 01:00, both officers exit the vehicle; PO Belkin approaches the driver's side of the van and instructs § 87(2)(b) to roll down his windows. § 87(2)(b) argues with PO Belkin about stepping out of the vehicle as SGT Piscatella approaches them. At runtime 01:26, § 87(2)(b) is outside of the van as PO Belkin holds onto § 87(2)(b) by both of his arms. PO Belkin attempts to place § 87(2)(b) torso against the side of the van, but § 87(2)(b) resists the officer by moving his torso. For approximately 30 seconds, § 87(2)(b) continues to argue with officers regarding the vehicle stop as PO Belkin explains to § 87(2)(b) that he was stopped for reckless driving, speeding, and failing to signal. The officers ask for § 87(2)(b) ID, and he refuses to provide it to the officers. Throughout the interaction, § 87(2)(b) continues to physically resist PO Belkin by moving his arms and body and is repeatedly told to stop resisting. At

runtime 02:16, both officers again ask § 87(2)(b) for his ID and § 87(2)(b) explains to the officers that he does not have an ID. SGT Piscatella tells § 87(2)(b) “Then you’re under arrest,” as PO Belkin places § 87(2)(b) arms behind his back and instructs him to face the van. At runtime 02:26, § 87(2)(b) pulls his arms free of PO Belkin’s grip and runs from officers. PO Belkin grabs onto § 87(2)(b) left arm with both arms. At runtime 02:31, during the struggle, SGT Piscatella’s BWC device falls onto the ground.

PO Belkin’s first BWC recording of the incident (**BR 22**) is consistent with SGT Piscatella’s BWC footage as it also falls onto the ground during § 87(2)(b) struggle to evade arrest. No officers’ BWC captures SGT Piscatella tasing § 87(2)(b) how § 87(2)(b) was brought to the ground, or if an officer stood on § 87(2)(b) legs while he was on the ground (**BR 02**).

PO Yakovlev’s BWC footage of the incident (**BR 04**) shows that at runtime 01:10, PO Yakovlev arrives at the scene with Police Officer Richard Lebron, of the 63rd Precinct, to assist PO Belkin and SGT Piscatella. § 87(2)(b) is already on the ground in a residential driveway with his left side partially underneath the rear of a gray sedan with his head toward the passenger side and his legs toward the driver’s side. PO Yakovlev approaches § 87(2)(b) and PO Belkin. At runtime 01:16, PO Belkin lifts and pulls § 87(2)(b) left arm from underneath his body with both hands. § 87(2)(b) continues to resist the officers by moving his torso and pulls his left arm away from PO Belkin. PO Yakovlev tells him to put his hands behind his back. At runtime 01:23, SGT Piscatella assists PO Belkin as he stands astride § 87(2)(b) and holds his shoulders. § 87(2)(b) continues to resist the officers by lifting up his torso and not placing his right hand behind his back. At runtime 01:33, PO Sabala arrives from the passenger side as he holds the upper part of § 87(2)(b) body down with both hands. PO Sabala’s right hand grabs onto the back of § 87(2)(b) winter coat as his left hand briefly holds onto the back of § 87(2)(b) head and neck before the view of his hands is obscured; the next clear view of PO Sabala’s hands, at runtime 01:41, shows that he is no longer holding onto the back of § 87(2)(b) neck. At runtime 01:54, PO Belkin successfully handcuffs § 87(2)(b) while on the ground. At runtime 02:05, as the officers get off § 87(2)(b) to lift him off the ground, he accuses an officer of standing on his ankle. At runtime 02:15, § 87(2)(b) is lifted off the ground.

§ 87(2)(b) statement (**BR 05**) is generally consistent with the BWC footage collected with the following additions and exceptions. On December 19, 2023, at approximately 9:27 PM, he was walking on the sidewalk near 1699 Albany Avenue in Brooklyn when PO Belkin and SGT Piscatella stopped him for an unknown reason. Both officers then grabbed § 87(2)(b) by his right arm and tried to put his hands behind his back; however, § 87(2)(b) successfully pulled his arm away from the officers and fled on foot. Without warning, an officer deployed their taser so that two cartridge probes penetrated § 87(2)(b) back. § 87(2)(b) received one round of electricity from the taser, which caused his body to seize up and fall face first onto the ground. § 87(2)(b) was unable to see who tased him. While on the ground, an officer placed their hand on the back of § 87(2)(b) neck, pinning him onto the ground without restricting his breathing and another officer stood on his legs. The officers pulled and twisted § 87(2)(b) left arm as they brought it behind his back and rear handcuffed him. § 87(2)(b) suffered scrapes and bruises on his hands and face, neck pain, back pain and a sprain on his left wrist. § 87(2)(b) was then brought to the hospital by police officers to address these injuries.

SGT Piscatella’s (**BR 06**) and PO Belkin’s statements (**BR 07**) were generally consistent with the footage collected with the following additions and exceptions. They stated that prior to the vehicle stop, they observed § 87(2)(b) driving recklessly, speeding, disregarding a red light, failing to signal while turning, and having an obscured license plate. PO Belkin was the only officer who made physical contact with § 87(2)(b) after he refused to provide his ID. § 87(2)(b) ran

eastbound on Albany Avenue towards a residential driveway. PO Belkin attempted to take him onto the ground as he wrestled and grappled with § 87(2)(b) however, § 87(2)(b) stayed standing. Neither officer was able to provide details on how PO Belkin attempted to gain control of § 87(2)(b) nor could they describe § 87(2)(b) actions as he fled from officers. Once § 87(2)(b) reached the sidewalk leading to the driveway, SGT Piscatella told PO Belkin, “Taser, Dave, taser,” at which point § 87(2)(b) successfully freed either his left or right arm from PO Belkin. With his back towards the officers, § 87(2)(b) continued to run on the sidewalk unencumbered by PO Belkin towards a driveway with a parked vehicle. SGT Piscatella deployed his taser as § 87(2)(b) approached the parked sedan and a gated fence at the end of the driveway, striking him in the upper left back and shoulder region. SGT Piscatella cycled the taser once. SGT Piscatella deployed his taser against § 87(2)(b) because he actively resisted his arrest, and he believed that the taser was the least lethal method of restraint and force to ensure the safety of both officers and § 87(2)(b) then fell onto the ground. Neither officer could describe how § 87(2)(b) landed on the ground upon being tased nor did they remember how he was initially positioned once on the ground. SGT Piscatella called for backup and PO Belkin positioned § 87(2)(b) onto his front as he attempted to handcuff § 87(2)(b). § 87(2)(b) refused to give his hands and tensed up his arms throughout the handcuffing. PO Belkin attempted to gain control of § 87(2)(b) by holding onto one of his arms while the other arm was underneath his body. Additional officers then responded to the incident and § 87(2)(b) complied as he placed both arms behind his back. PO Belkin believed that he was the only officer who interacted with § 87(2)(b) arms during the handcuffing. PO Belkin denied an officer standing on either of § 87(2)(b) legs during the handcuffing.

PO Yakovlev (**BR 08 and 09**), PO Randi Knepper, of the 63rd Precinct, who also responded to assist SGT Piscatella and PO Belkin (**BR 17**), and PO Lebron (**BR 18**) all provided statements consistent with the footage collected.

Arrest Report § 87(2)(b) (**BR 01**), prepared by PO Belkin, is consistent with officers’ statements.

Threat Resistance and Injury (TRI) report § 87(2)(b) (**BR 10**), prepared by Lieutenant Xiang Li, from the 63rd Precinct, noted that § 87(2)(b) did not comply with officers’ commands to exit vehicle, and did resist arrest by tensing up his arms and refusing to be handcuffed. § 87(2)(b) did then attempt to flee officers on foot to which [he] was taken down, and subsequently tased (prongs). § 87(2)(b) was removed to § 87(2)(b) Hospital from the scene with a minor laceration and complaint of pain.”

TRI report § 87(2)(b) (**BR 23**), completed by SGT Piscatella’s use of force during the incident, noted that the officer was approximately six feet away from § 87(2)(b) once the taser was deployed as initially two prongs struck his back penetrating the skin and caused § 87(2)(b) to fall onto the ground. § 87(2)(b) continued to resist officers while on the ground, which caused his prongs to fall out of his clothing. SGT Piscatella tased § 87(2)(b) to overcome resistance or aggression of a fleeing subject.

The Taser Data Sheet for SGT Piscatella’s taser, serial number § 87(2)(b) noted that on December 19, 2023, at 9:48:13 PM, SGT Piscatella armed his taser and at 9:48:18 PM the taser was triggered for a duration of five seconds. SGT Piscatella activated his taser once on the date of the incident (**BR 11**).

Patrol Guide Procedure 221-08 (**BR 12**) states tasers should only be used against a person who is actively resisting, exhibiting active aggression, or to prevent said person from physically injuring themselves or other person(s). When feasible, issue an appropriate verbal warning, consistent with

personal safety, to the intended subject. This warning may be used to gain voluntary compliance and prevent the need to use force. Fleeing should not be the sole justification for using a taser against a subject. Members should consider several factors including but not limited to the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a taser on a fleeing subject. All applications must be independently justifiable, and the risks should be weighed against other force options.

§ 87(2)(b) fled from officers on foot during his arrest, when SGT Piscatella deployed his taser. Though the TRI report indicated that § 87(2)(b) was tased by SGT Piscatella once he had already been brought down to the ground, officer statements confirm that § 87(2)(b) was tased while running. § 87(2)(g)

Additionally, § 87(2)(b) had been stopped for VTL violations and exhibited no active aggression. § 87(2)(g)

It is therefore recommended that **Allegation A** be **substantiated**.

Patrol Guide Procedure 221-01 (BR 13) states that officers may only use the reasonable force necessary to gain compliance, control, or custody of an uncooperative subject as well as to ensure the safety of others or themselves. To determine whether force is reasonable, officers should consider factors including but not limited to: actions taken by the subject, duration of the action, whether the subject is actively resisting custody, and whether the subject is attempting to evade arrest by flight.

It is undisputed that § 87(2)(b) attempted to evade his arrest by fleeing from officers on foot, and upon being brought down to the ground, he continued to actively resist custody by not freely giving his arms and moving his torso, requiring PO Belkin to pull his arm from underneath his body and SGT Piscatella and PO Sabala to pin his torso onto the ground by holding his shoulders and his neck, respectively. § 87(2)(g)

it is recommended that **Allegations B, C, and D** be closed as **within NYPD guidelines**.

Allegation (E) Offensive Language: Police Officer Stanislav Yakovlev made remarks to § 87(2)(b) based upon race.

Allegation (F) Discourtesy: Police Officer Stanislav Yakovlev spoke discourteously to § 87(2)(b).

Allegation (G) Abuse of Authority: Police Officer Stanislav Yakovlev refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Stanislav Yakovlev refused to provide his shield number to § 87(2)(b)

PO Yakovlev's BWC footage of the incident (**BR 04**) shows at runtime 03:28, § 87(2)(b) stands at the hood of a police vehicle with PO Yakovlev and PO Lebron. § 87(2)(b)

continuously argues with the officers regarding his arrest and how he is being handled and shuffles his feet and moves his torso as officers attempt to hold him still. At runtime 06:29, PO Yakovlev asks § 87(2)(b) “Why you moving, brother?” as he replies, “My nigga.” PO Yakovlev then repeats back to § 87(2)(b) “My nigga,” as he tells § 87(2)(b) to stop moving. At runtime 06:57, § 87(2)(b) tells PO Yakovlev, “Yo, who are you, what’s your name... and your badge number,” and PO Yakovlev replies, “Don’t worry about it, when you go to the judge, they got all the names.” After approximately five minutes, an ambulance arrives at the scene and PO Yakovlev escorts § 87(2)(b) to it. At runtime 10:50, § 87(2)(b) tells PO Yakovlev, “Yo, what’s your name?” as the officer replies, “Don’t worry about it.” At no point during the incident does PO Yakovlev provide § 87(2)(b) with his name or shield number.

PO Yakovlev’s statement (BR 08 and BR 09) is generally consistent with the footage collected by the investigation with the following additions and exceptions, as he explained that he used the word “nigga” while conversing with § 87(2)(b) as a sign of “brotherhood,” and denied it being discourteous, demeaning or disrespectful to § 87(2)(b). PO Yakovlev confirmed that he was not allowed to use that type of language while on duty as a police officer. PO Yakovlev did not provide his name and shield number when asked multiple times by § 87(2)(b) because neither of them could write down the information. PO Yakovlev did not verbalize his name or shield number because he did not believe § 87(2)(b) would remember his name or shield number. PO Yakovlev explained that at no point during his interaction with § 87(2)(b) did the officer have a peaceful moment where he could have provided his name and shield number, either in written or audible form. Throughout the entire incident, § 87(2)(b) screamed at police officers and constantly moved his body.

Patrol Guide Procedure 200-02 (BR 14) states that members of service are instructed to treat citizens with courtesy and professionalism, and that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy.

Administrative Guide Procedure 304-06 (BR 15) forbids officers from using discourteous language or making disrespectful remarks regarding an individual’s race or ethnicity.

It is undisputed that while conversing with § 87(2)(b) PO Yakovlev used the word “nigga.” § 87(2)(g) it is recommended that **Allegations E and F** both be **substantiated**.

Administrative Guide Procedure 304-11 (BR 16) states that all members of service shall courteously and clearly state their name and shield number to anyone who request them to do so unless exigent circumstances prevent them from being able to do so, such as physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedures impractical.

It is undisputed that PO Yakovlev did not provide his name and shield number to § 87(2)(b) when asked multiple times throughout the incident to do so. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations G and H** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)**
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- Sgt. Piscatella has been a member of service for 18 years and has been a subject in six other CCRB complaints and 11 other allegations, of which one was substantiated:
- Case 202203038 involved one substantiated Discourteous Word allegation against Sgt. Piscatella. The Board recommended Command Discipline A, which the NYPD imposed.
- § 87(2)(g)**
- PO Belkin has been a member of service for nine years and has been a subject in six other CCRB complaints and eight other allegations, of which one was substantiated:
- Case 201807163 involved one substantiated Refusal to Process Civilian Complaint allegation against PO Belkin. The Board recommended Formalized Training, and the NYPD imposed Command Discipline A.
- § 87(2)(g)**
- PO Yakovlev has been a member of service for 17 years and has been a subject in four other CCRB complaints and six other allegations, of which none were substantiated.
- § 87(2)(g)**
- PO Sabala has been a member of service for three years and has been a subject in 13 other CCRB complaints and in 36 other allegations, of which one was substantiated:
- Case 202302885 involved one Improper Use of Body-Worn Camera allegation against PO Sabala. The Board recommended Command Discipline A, which the NYPD imposed.
- § 87(2)(g)**

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 14, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 20**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Kelly Guillon</u>	<u>Investigator Kelly Guillon</u>	<u>January 14, 2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>IM Benjamin Shelton</u>	<u>01/15/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date